

SENATE No. 3160

Senate, July 2, 2026 -- Substituted as a new draft (Senator Durant) for the Senate Bill relative to the dissolution of the Holmes Park Water District (Senate, No. 2505).

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the dissolution of the Holmes Park Water District.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 788 of the acts of 1963 is hereby repealed.

2 SECTION 2. (a) The town of Westminster shall assume the rights, duties and
3 responsibilities of the Holmes Park Water District established under chapter 788 of the acts of
4 1963 to supply water to inhabitants within the boundaries of the district for all purposes set forth
5 in said chapter 788. All infrastructure, equipment, facilities, funds, assets, liabilities and property
6 of the district shall be assumed by the town of Westminster and the infrastructure shall become
7 part of the town's water supply system under the care, custody and control of the town's public
8 works commission; provided, however, that if any real property interests of the district are
9 subject to Article 97 of the Amendments to the Constitution of the Commonwealth, such Article
10 97 purpose shall continue to be held by the town of Westminster.

11 (b) All rates, taxes or other charges due and owing to the district by any inhabitants of the
12 district shall become due and payable to the town of Westminster. The town, through its public

13 works commission, shall have all legal rights of enforcement and collection of such rates, taxes
14 and other charges.

15 (c) Any funds held by the district on the effective date of this act shall be transferred to
16 the custody and control of the town of Westminster. Such funds shall be used to pay all
17 outstanding debts of the district. After payment of those debts, any excess funds shall be credited
18 to the town's water enterprise fund established pursuant to section 53F1/2 of chapter 44 of the
19 General Laws and shall be used for purposes of the water enterprise fund.

20 SECTION 3. This act shall take effect upon its passage.